[Translation from Chinese to English]

Contract No.: [2023WEST001]

Zhongbei Puhui Enterprise Development Co., Ltd.

Yichuan County Government, Yan'an City, Shaanxi Province

New Agricultural Project Cooperation Agreement

March 2023

New Zealand Society of Translators and Interpreters Incorporated
Liang Tian
TRANSLATOR
Chinese → English
Member

Translator statement: This is a correct translation of the attached copy of the original document. It does not establish the authenticity of the original or the correctness of the statements therein.

Translator: Liang Tian (Member of NZSTI 1251) Mobile: 0220623288 Email:xyztrans2004@gmail.com

Signature:

Date: 19 July 2025

Party A: Zhongbei Puhui Enterprise Management Co., Ltd. (hereinafter referred to as Party A)

Party B: Xuanchuan County Government of Yan'an City, Shaanxi Province (hereinafter referred to as Party B)

I. Whereas:

(I) Zhongbei Puhui Enterprise Management Co., Ltd. was established in September 2022 and is a professional company established by China Commerce Holdings Group Ltd.to develop new agriculture, new business and new energy.

(II) Yichuan County, Yan'an City, Shaanxi Province is located in the world's golden apple growing area. It is an important county for the development of forestry and fruit industry in China. The county has 300,000 mu of apple orchards. Yichuan County took the lead in transforming 10,000 mu of apple orchards from traditional trees to new dwarf seedlings in 2022. The yield per mu will be increased threefold. The dwarf seedlings have wider row spacing. It is planned to use fruit machinery to replace manual work, reducing labour costs by 30% per mu. and farmers' net income per mu is 19,000 yuan, which is 4 times higher than before. It is planned to transfer all 300,000 mu of trees in the county to new dwarf seedlings within five years, which will effectively help revitalize many villages.

(III) After friendly negotiation between the two parties, based on the principles of "equality and mutual benefit, complementary advantages, mutual respect, mutual trust, and win-win cooperation", the two parties intend to promote cooperation in new agricultural projects. In order to expedite the next phase of work, the two parties hereby sign this agreement, the specific details of which are as follows:

2. Cooperation Content

Party A is responsible for the investment and construction of the main projects and the subsequent technical support; Party B is responsible for part of the project investment, coordinating various government departments and land leasing and transfer, mobilizing farmers and ensuring the project boundary conditions are as follows:

III. Cooperation project: Yichuan County New Dwarf Apple Planting Project

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(I) Project Overview:

1) Party A and Party B carried out a 200-mu orchard land-photovoltaic project test in Baoding Village, Yunyan Town, Yichuan County, Yan'an City. Party A is responsible for providing seedlings, technical support and fruit repurchase; Party B invests in a drip irrigation system, cooperates with Party A to transfer land for the pilot orchard, and cooperate with Party A on withdrawing agricultural investment from this pilot orchard in the fifth year of investment, which is January 2026.

2) Party A will gradually cooperate with Party B to carry out the transfer of 50,000 mu of apple orchards in the county from traditional trees to new dwarf seedlings.

(II) Investment amount:

1) Party A shall invest in Yichuan County at a rate of CNY 12,000 per mu, with a total investment area of 50,200 mu and a total investment of CNY 602.4 million, of which Phase I is 200 mu, CNY 2.4 million; Phase II is 50,000 mu, CNY 600 million. The unit price of investment includes seedlings and technical training costs.

2) The designated platform company shall invest in Yichuan County in accordance with the investment and financing model at a rate of CNY 2,000 per mu, with a total investment area of 50,200 mu and a total investment of CNY 104 million, of which Phase I is 200 mu, CNY 400,000; Phase II is 50,000 mu, CNY 100 million. The investment includes the construction cost of the integrated water and fertilizer drip irrigation system.

IV. Cooperation Method

(I) Party A and Party B shall regularly conduct in-depth exchanges of information on all stages of the project;

(II) Party A shall proactively raise funds and collaborate with banks, and cooperate with Party B in the second phase of the project to provide the cooperating party with a 3-year low-interest loan for seedling transformation, introduce high-yield seedlings, ensure that there is no need for bagging, guarantee the loss rate and survival rate, and purchase at a price of CNY 8/kg. If the annual price fluctuates, farmers will enjoy a share of excess profits;

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Introduce Israeli integrated water and fertilizer drip irrigation technology, practical agricultural equipment technology, and high-quality mineral-source yellow acid humus series orchard land repair fertilizer technology; provide a complete set of standardized planting processes, train members of village-based farmer cooperatives to become agricultural industry workers. As members' technical skills improve, introduce orchard digital management at a proper time, transforming traditional agriculture 1.0 to 3.0 or even 4.0.

(III) Party B shall use its own advantages to proactively participate in Party A's project site selection, project establishment, and application for relevant national policy support, assist Party A in implementing a water and fertilizer integrated drip irrigation system, land transfer, technology promotion, farmer mobilization, etc., and coordinate with various government departments, villages and towns to advance the progress of project development.

(V) Party B guarantees that it shall provide the most preferential investment promotion policies during Party A's investment process and to promptly resolve various government function-related issues encountered during the planting process. After Party A has invested for 4 years, (Party B) shall cooperate with Party A to purchase the investment assets of Party A and Party B at a price of 18,480 yuan/mu (the initial investment is 14,000 yuan/mu, with an annualized return of 8%, and a cumulative return of 32(%) in 4 years, which is 4,480 yuan/mu) in the order of priority entities, with farmers being the first priority, followed by local governments, and lastly agricultural state-owned enterprises.

(VI) To implement the cooperative spirit of this agreement, both parties guarantee to cooperate exclusively on the cooperation projects agreed upon in this agreement during the validity period of the agreement. If either party wishes to terminate the cooperation, it shall notify the other party in writing in advance.

V. Term of Cooperation

This agreement shall be effective from the date of entry into force of this agreement to 31 December 2028. Party A shall start investing in new dwarf apples before31 April 2023, and complete the transformation of 50,200 mu of apple orchards in the county from traditional trees to new dwarf seedlings within 5 years. If during this period, there are major changes in policies, markets, etc. that affect the continued implementation, the two parties shall agree to terminate or extend the contract term in a supplementary agreement.

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VI. Miscellaneous

1. This agreement is made in four copies, with each party holding two copies. It shall take effect after both parties affix their official seals or special seals for agreement. This agreement shall automatically terminate upon expiration. If both parties choose to continue the agreement, they shall sign another agreement.

2. The parties shall resolve other matters not covered in this cooperation framework agreement through friendly negotiation, or sign a separate written supplementary agreement to clarify such matters.

3. Any disputes arising from or related to this agreement shall be resolved through friendly negotiations between the two parties.

VII. Confidentiality Clauses

1. Without the prior consent of the other party, neither party shall hand over this Cooperation Framework Agreement and any other agreement signed during the cooperation to any third party in any form, or use them for any purpose other than the project (except for related financial and government related departments).

2. Whether during the validity period of this agreement or after its termination, both parties shall strictly keep confidential from third parties all non-public information and materials such as strategies, plans, major industrial layouts, etc. obtained from each other. Documents and materials that should be kept confidential must be marked as such. Without the written consent of the other party, neither party may disclose the project and technical information of the cooperation party to the agreement to a third party.

The following is without text.

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(This page has no text, it is the signing page for the Strategic Cooperation Agreement for the 50,200-Mu Dwarf Dense Apple Orchard Planting Project in Yichuan County, Yan’an City, Shaanxi Province.)

Party A: Zhongbei Puhui Enterprise Management Co., Ltd. (Seal):

Zhongbei Puhui Enterprise Management Co., Ltd.

Person in Charge or Authorized Representative: (Signature): Feng Ling (signature)

Date of Signature: Year Month Day

Party B: Yichuan County Government, Yan'an City, Shaanxi Province

Yichuan County People’s Government

Person in Charge or Authorized Representative: (Signature): Feng Li (signature)

Date of Signature: Year Month Day

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合同号:【2023WEST001】

中北普惠企业发展有限公司
陕西省延安市宜川县政府

新农业项目合作协议

2023 年 03 月

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甲方：中北普惠企业管理有限公司（以下称甲方）

乙方：陕西省延安市宜川县政府（以下称乙方）

一、鉴于：

（一）中北普惠企业管理有限公司成立于 2022 年 9 月，是中商控股集团有限公司为拓展新农业、新商业、新能源设立的专业公司。

（二）陕西省延安市宜川县位处世界黄金苹果生长区，为中国重点发展林果业的重要县市，全县拥有苹果园 30 万亩。宜川县于 2022 年率先扭转了 1 万亩苹果园由落后的传统乔木到新型矮化树苗，亩产量将提高 3 倍，矮化树苗行间距较宽，计划使用果业机械代替手工作业，每亩成本下降 30%，农户每亩纯收入 1.9 万元，较之前提高了 4 倍，计划五年内流转全县全部 30 万亩乔木到新型矮化树苗，将有力地助力乡村振兴。

（三）经双方友好协商，本着“平等互利、优势互补、互相尊重、互相信任、合作共赢”的原则，拟促成新农业项目合作，为尽快开展下一步工作，双方特签订本协议，具体内容如下：

二、合作内容

甲方负责主要项目投资建设及后期技术支持；乙方负责部分项目投资、协调各政府部门以及土地租赁流转、农户动员工作并确保项目边界条件如下：

三、合作项目：宜川县新型矮化苹果种植项目

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（一）项目概述：

1）甲方和乙方在延安市宜川县云岩镇堡定村展开 200 亩园光互补测试。甲方负责提供苗木、技术支持及果品回购；乙方投入滴灌系统，配合甲方对实验果园进行土地流转，及配合甲方在投资第五年暨 2026 年 1 月份在此测试果园上的农业投资退出。

2）甲方将逐步配合乙方进行全县 5 万亩苹果园由传统乔木到新型矮化树苗的流转。

（二）投资金额：

1）甲方按照 12000 元/亩标准在宜川县内进行投资，合计投资面积 5 万零 2 百亩，投资总额 6 亿零 240 万元。其中一期 200 亩，240 万元；二期 5 万亩，6 亿元。投资单价中包含种苗、及技术培训费用。

2）乙方指定平台公司按照投融资模式，以 2000 元/亩标准在宜川县内进行投资，合计投资面积 5 万零 2 百亩，投资总额 1 亿零 40 万元。其中一期 200 亩， 40 万元；二期 5 万亩，1 亿元。投资包含水肥一体滴灌系统建设费用。

四、合作方式

（一）甲乙双方定期深入交流项目各阶段的信息；

（二）甲方积极募集基金，联合银行，项目二期配合乙方给予合作方苗木扭转中的 3 年低息贷款、引入高产值种苗、确保无需套袋、并保证耗损率及成活率、并以 8 元/公斤的价格包收，如果年度价格浮动，农户将享受超额收益分成；

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引入以色列水肥一体滴灌技术，实用农用设备技术，优质矿源黄酸腐系列果园土地修复肥料技术；提供整套标准化种植流程，培训以村为单位的农户合作社的社员成为农业产业工人，随着社员技术的提高，择期引入果园数字管理，由传统的农业 1.0 向 3.0 甚至 4.0 转化。

（三）乙方利用自身优势积极参与甲方项目选址、项目立项、申请国家相关政策支持等工作，协助甲方实施水肥一体滴灌系统，土地扭转流转，技术推广，农户动员等方面与政府各部门、各村镇进行协调，推进项目开发进度。

（五）乙方承诺在甲方投资过程中提供最优惠的招商引资政策，及时解决在种植过程中遇到的各类政府职能相关问题。在甲方投资 4 年后，将配合甲方在优先安排农户、其次当地政府、最后为农业类国家企业的优先级主体顺序以 1.848 万元/亩价格收购甲乙双方所投资产（初始投资 1.4 万元/亩计算，以年化 8%收益，4 年累计 32 收益暨 0.448 万园/亩）。

（六）为落实本协议的合作精神，双方均承诺本协议约定的合作项目，在协议有效期内进行排他性合作。任何一方放弃合作的，应当提前以书面方式通知另一方。

五、合作期限

本协议有效期自本协议生效之日起至 2028 年 12 月 31 日止。甲方须在 2023 年 4 月 31 日前开始新型矮化苹果的投资，并在 5 年内完成全县 5 万零 2 百亩苹果园由传统乔木到

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新型矮化树苗的扭转。如在此期间内遇到政策、市场等因素造成巨大变化影响继续实施的，双方应另以补充协议方式约定终止或延长合同期限。

六、其他

1、本协议一式肆份，双方各执贰份，经双方加盖公章或协议专用章后生效。本协议有效期届满后自动终止。如双方选择继续协议，则应该另行签署协议。

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七、保密条款

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以下无正文。

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（本页无正文，为《陕西省延安市宜川县5万零2百亩苹果矮砧密植种植园项目合作协议》签署页）

甲方：中北普惠企业管理有限公司（盖章）：

负责人或授权代表（签字）：

签署日期：　　年　　月　　日

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签署日期：　　年　　月　　日

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